

Smt. Rajni Verma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 April 2011 · WRIT - C No. 24092 of 2011 · **Writ disposed of: deposit claimed dues in two months, restore within 72 hours.**

HEADNOTE

Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides that a billing complaint is considered on deposit of the entire claimed amount or charges calculated on the average of the preceding six months' bills, whichever is less. The petitioner having undertaken to deposit the entire claimed sum, the Court fixed two months from the certified copy for deposit, required a restoration application thereafter, and directed the licensee to restore supply without delay and not later than 72 hours of that application. The order is irrespective of any theft proceeding. A later application for more time to pay was refused.

FACTUAL SUMMARY

Smt. Rajni Verma filed a writ petition seeking restoration of her electricity connection, offering to pay the amount claimed by the respondent Corporation within a time to be fixed by the Court. Counsel for the Corporation stated it was ready to consider her cause. After the principal order of 26 April 2011 directing deposit within two months, she sought further time by a civil miscellaneous modification application, which was dismissed on 5 May 2011.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

reconnection on deposit pending billing complaint

HOLDING

Under clause 6.5, a billing complaint is to be considered on deposit of the entire claimed amount or electricity charges calculated on the average of the preceding six months' bills, whichever is less. The petitioner having undertaken to deposit the entire claimed amount, the Court directed deposit within two months of a certified copy and a restoration application thereafter; the licensee, after considering the matter, is to restore supply without delay and not later than 72 hours of the application. The order is irrespective of any theft case, which if established may be proceeded with independently. A modification application seeking further time to pay was dismissed. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides that a billing complaint is considered on deposit of the entire claimed amount or charges calculated on the average of the preceding six months' bills, whichever is less.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DISCONNECTION INVOLVED THEFT OF ELECTRICITY

The Court left any theft case to be dealt with independently; if established, the licensee may take steps in accordance with law. ¶ 1